

2015 SCC OnLine All 1878

(BEFORE DHANANJAYA YESHWANT CHANDRACHUD, C.J. AND DEVENDRA KUMAR
UPADHYAYA, J.)

Dr. Mamta Tripathi Petitioner

v.

State of U.P. Thru. Prin. Secy. Home U.P. & 6 Ors. .

.... Respondents

Counsel for Petitioner:- Dr. Dharendra Kumar Misra, Padam Chandra
Gupta, Ram Shankar Tripathi

Counsel for Respondent:- C.S.C., Am Shukla

Misc. Bench No. - 12974 of 2014

Decided on January 22, 2015

Hon'ble Dr. Dhananjaya Yeshwant Chandrachud, Chief Justice
Hon'ble Devendra Kumar Upadhyaya, J.

On the oral request of the petitioner, who appears in person, we
implead the Sub-Divisional Officer of the Lucknow Electric Supply
Authority, Vibhuti Khand, Gomti Nagar, Lucknow, as respondent to
these proceedings. Necessary amendment be carried out forthwith.

Issue notice to the seventh respondent, returnable on 10 February
2015.

The petitioner claims to be a tenant in respect of residential premises
comprising of 1/173, Vikrant Khand, Police Station Vibhuti Khand,
Gomti Nagar, Lucknow since 1 April 2012. She is stated to be residing
on the first floor. Her case is that an electricity connection bearing No.
2195380000 stands in the name of the landlord, the seventh
respondent, through which she was receiving her electricity supply.
However, her electricity supply was disconnected on 4 December 2014
and once again on 15 December 2014. The petitioner has applied on 26
December 2014 for the grant of a fresh electricity connection. On 29
December 2014, she was informed by the Sub-Divisional Officer of the
Lucknow Electric Supply Authority¹ that she should produce a copy of
the rent agreement and the consent of the landlord. The petitioner has
annexed to the writ proceedings the copies of the payment receipts
made through the Bank to the landlord at Annexure 2.

At present, it appears that the difficulty in granting an electricity
connection to the petitioner in her own name is the absence of the

consent of the landlord. The petitioner has pleaded that there is a dispute with the landlord.

In the judgment of a Division Bench of this Court in *Smt. Sushama Chowdhary v. U.P. Power Corporation Ltd.*², decided on 24 September 2014, this Court while taking due note of the decision of the Supreme Court in *Chandu Khamaru v. Smt. Nayan Malik*³ observed as follows:

“We find merit in the contention of the petitioner that the impugned order dated 2 August 2014 contains no reason for the denial of electric supply, save and except for making a reference to the provisions of Clause 4.4 of the Electricity Supply Code-2005. Clause 4.4 of the Code-2005 is in aid of the statutory duty cast by Section 43 of the Act of 2003.

As a matter of fact, an Indemnity Bond, a proforma of which is contained in Annexure 4.2 of the Code-2005, deals with a situation where an occupier of the premises applies for the grant of an electricity connection, but is unable to produce the consent of the owner. Obviously, in a situation, where a dispute is between the owner and occupier (in the present case, the dispute is between members of a family), a provision has been made for furnishing an Indemnity Bond.”

Having regard to the position of law as explained in the decision of the Division Bench noted above, which is in turn based on a judgment of the Supreme Court, we are of the view that the competent authority of LESA shall process the application filed by the petitioner in terms of the aforesaid observations. The petitioner shall comply with all other requirements under the law for the grant of an electricity connection in her name. We direct that the petitioner shall be informed within a period of two days from the receipt of a certified copy of this order of any other requirements which are required to be fulfilled. On the petitioner fulfilling the requirements, a final decision shall be taken on the grant of electricity connection and, if the petitioner is otherwise eligible, necessary action shall be taken no later than within a period of one week thereafter.

The letter dated 29 December 2014, which is placed by the petitioner before the Court is taken on the record and shall form part of these proceedings.

¹ LESA

² Misc. Bench No. 9588 of 2014

³ AIR 2011 SC 2897

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